

23STCV13211 23STCV13211

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-09

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Case Number: 23STCV13211 Hearing Date: September 9, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

SHABI COHEN

;

Plaintiff,

vs.

fmb development, llc

, et al.;

Defendants.

Case

No.:

23STCV13211

Hearing

Date:

September
9, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

motion TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

MOVING PARTY: Defendant and Cross-Defendant Ilan
Kenig

RESPONDING PARTY: Cross-Complainant Moises Gilinski

Motion to Compel Further Responses to Requests for Production of
Documents, Set One

The court
considered the moving and opposition papers filed in connection with this
motion.

DISCUSSION

Defendant and cross-defendant Ilan Kenig ("Kenig") filed and served this
motion to compel further responses to Requests for Production of Documents, Set
One, on cross-complainant Moises Gilinski ("Gilinski") by electronic service on
August 17, 2026. (Motion, p. 19, Proof
of Service.)

The court
finds that Kenig has not given proper notice of this motion. "[A]ll moving and supporting papers shall be
served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) The notice period is
extended by two court
days for electronic service. (Code Civ.
Proc., §§ 1010.6, subd. (a)(3)(B) ["Any period of notice, or any right

or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days . . ."). The proof of service attached to this motion states that Kenig served it on Gilinski by electronic service on August 17, 2026. (Motion, p. 19, Proof of Service.) Sixteen court days before the September 9, 2026 hearing was August 17, 2026, which places the deadline for electronic service on August 13, 2026.

The court therefore denies Kenig's motion because he did not give the required statutory notice of the motion and hearing.

ORDER

The court denies defendant and cross-defendant Ilan Kenig's motion to compel further responses from cross-complainant Moises Gilinski to Requests for Production of Documents, Set One.

The court orders cross-complainant Moises Gilinski to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 9, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court